

Tentative Rulings for September 10, 2026
Department 503

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

(Tentative Rulings begin at the next page)

Tentative Rulings for Department 503

Begin at the next page

(29)

Tentative Ruling

Re: **Lopez v. Nationwide National Insurance Co.**
Superior Court Case No. 26CECG01234

Hearing Date: September 10, 2026 (Dept. 503)

Motion: Amend Complaint

**If oral argument is timely requested, it will be entertained on
Thursday, September 17, 2026, at 3:30 p.m. in Department 503.**

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 9/3/2026.
(Judge's initials) (Date)

(49)

Tentative Ruling

Re: ***Hernandez v. Nava et al.***
Superior Court Case No. 26CECG00773

Hearing Date: September 10, 2026 (Dept. 503)

Motion: By Plaintiff Maribel Hernandez to Compel Defendant Alvaro Nava's Response to Request for Production of Documents, Set One, and Order for Sanctions

Tentative Ruling:

To grant plaintiff Maribel Hernandez's motion to compel defendant Alvaro Nava's responses to Plaintiff Maribel Hernandez' Request for Production of Documents, Set One. Defendant Alvaro Nava is ordered to produce all responsive documents, without objections, within 30 days of the clerk's service of the minute order.

To impose monetary sanctions in favor of plaintiff Maribel Hernandez and against defendant Alvaro Nava. (Code Civ. Proc., §§ 2023.010, subd. (d), 2031.300, subd. (c).) Defendant Alvaro Nava is ordered to pay \$810 in sanctions to Wild, Carter & Tipton within 30 days of the clerk's service of the minute order.

**If oral argument is timely requested, it will be entertained on
Thursday, September 17, 2026, at 3:30 p.m. in Department 503.**

Explanation:

Compel Responses

Plaintiff Maribel Hernandez ("Plaintiff") moves to compel initial responses from defendant Alvaro Nava ("Defendant") for Plaintiff's Request for Production of Documents, Set One ("Set One").

Responses to requests for production are due within 30 days after service. (Code Civ. Proc., § 2031.250, subd. (a).) If the party fails to serve responses, that party waives all objections to the request for production. (Code Civ. Proc., § 2031.300, subd. (a).)

On April 14, 2026, Plaintiff served Set One on Defendant. (Harris Decl., ¶ 2, Harris Supplemental Decl., Exh. A.) As of August 19, 2026, Defendant has not served any responses. (Harris Supplemental Decl., ¶ 3.) Defendant has not filed any opposition to the motion. Accordingly, the motion to compel responses to Set One is granted.

Sanctions

When a motion to compel responses is filed, the court shall impose monetary sanctions against the losing party unless there was substantial justification. (Code Civ. Proc., §§ 2023.010, subd. (d), 2031.300, subd. (c).) The court may require a party who misuses the discovery process to "pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (*Id.*, § 2023.030, subd. (a).) Misuse of the discovery process includes failing to respond to discovery. (*Id.*, § 2023.010, subd. (d).)

Plaintiff is seeking sanctions in the amount of \$810 based on 2.5 hours of work by an attorney at \$300 an hour and \$60 in costs. Accordingly, Plaintiff's request for sanctions is granted. Defendant is ordered to pay \$810 in sanctions to Wild, Carter & Tipton within 30 days of the service of the minute order.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 9/3/2026.
(Judge's initials) (Date)

(37)

Tentative Ruling

Re: **Thorpe-Ghazal v. Bell**
Superior Court Case No. 24CECG02613

Hearing Date: September 10, 2026 (Dept. 503)

Motion: By Defendant Bell to Lift the Stay

Tentative Ruling:

To deny, without prejudice.

To set the matter for a status conference on Thursday, February 4, 2027 at 3:30 p.m. in Department 503.

Plaintiff's counsel is to give counsel for defendant Bell notice of any orders from the arbitration proceedings within two days of receipt of such orders.

**If oral argument is timely requested, it will be entertained on
Thursday, September 17, 2026, at 3:30 p.m. in Department 503.**

Explanation:

On June 18, 2024, plaintiff filed a complaint against defendants Thomas Bell, Stanley Cooper, and RBC Capital Markets alleging fraud, breach of fiduciary duty, and professional negligence. On August 29, 2024, defendant Bell filed a cross-complaint for indemnity against Jim Miller.

On August 23, 2024, Bell filed his demurrer and motion to strike, with a hearing date of October 16, 2024. On September 4, 2024, defendants Cooper and RBC Capital Markets filed a motion to compel arbitration, with a hearing date of November 7, 2024.

On October 17, 2024, the court sustained Bell's demurrer and granted the motion to strike, both with leave to amend. The court noted that there were no allegations that plaintiff had relied on representations by Bell which could form a basis for applying the doctrine of equitable tolling. (Minute Order, October 17, 2024.) On October 25, 2024, plaintiff filed an amended complaint.

Shortly thereafter, on November 7, 2024, the court granted the motion to compel arbitration and stayed the matter pending arbitration.

Three months later, on February 5, 2025, Bell filed a motion to lift the stay as to the claims against him. On March 6, 2025, the court denied the motion. The court noted that while the stay had not been expressly sought, it was nevertheless warranted. (Minute Order, March 6, 2025.)

Now, one year and ten months after the order was made compelling plaintiff and defendants Cooper and RBC Capital Markets to arbitration, defendant Bell again seeks to lift the stay. Bell asserts that he has been diagnosed with a terminal illness and in a declaration dated May 28, 2026 he acknowledges that he has been told he has approximately one year to live. (Bell Decl., ¶ 13.) Plaintiff argues that the issues already subject to arbitration overlap here, that Bell's video deposition has been completed, and that arbitration has been set for January 18, 2027.

Code of Civil Procedure section 1281.4 provides for a stay of proceedings where the court has ordered parties to arbitration "until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies." The purpose of staying the matter is to "protect the jurisdiction of the arbitrator by preserving the status quo until arbitration is resolved." (*MKJA, Inc. v. 123 Fit Franchising, LLC* (2011) 191 Cal.App.4th 643, 658, quoting *Federal Ins. Co. v. Superior Court* (1998) 60 Cal.App.4th 1370, 1374-1375.) Without the stay, there is a risk of disrupting arbitration proceedings and rendering them ineffective. (*Ibid.*)

The goal of arbitration is to provide a "'speedy and relatively inexpensive method of resolving disputes' without unduly prejudicing parties who have not agreed to arbitration" where such issues are severable. (*Heritage Provider Network, Inc. v. Superior Court* (2008) 158 Cal.App.4th 1146, 1152-1153, citations omitted.)

Trial courts have some discretion to lift such a stay "only under circumstances in which lifting the stay would not frustrate the arbitrator's jurisdiction." (*MKJA, Inc. v. 123 Fit Franchising, LLC, supra*, 191 Cal.App.4th at p. 660.) Where an "issue which is the controversy subject to arbitration is severable, the stay may be with respect to that issue only." (Code Civ. Proc., § 1281.4.) Such severance is discretionary. (*Cook v. Superior Court of Los Angeles County* (1966) 240 Cal.App.2d 880, 885.)

At this time, the court is not inclined to lift the stay. Though, the court would note some concerns. This matter has been stayed pending arbitration for nearly two years. The court would hope that plaintiff has communicated to the arbitrator the urgency and potential prejudice that may occur to a defendant who is not a party to the arbitration should any further delays occur.

While the court is denying lifting the stay at this juncture, an earlier status conference will be scheduled. The court would be inclined to expeditiously entertain any relevant motion(s) immediately following the conclusion of the arbitration proceedings. As such, plaintiff is to keep defendant Bell's counsel apprised of the status of the arbitration proceedings.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/8/2026.
(Judge's initials) (Date)

(41)

Tentative Ruling

Re: **Katie Chavez v. Ellie Rosenberg**
Superior Court Case No. 22CECG01554

Hearing Date: September 10, 2026 (Dept. 503)

Motion: By Defendants for Summary Judgment or Summary
Adjudication

Tentative Ruling:

To grant the defendants' motion for summary judgment. The defendants are directed to submit to this court, within five days of service of the minute order, a proposed judgment consistent with the court's summary judgment order.

**If oral argument is timely requested, it will be entertained on
Thursday, September 17, 2026, at 3:30 p.m. in Department 503.**

Explanation:

The plaintiff, Katie Chavez (Plaintiff), filed a complaint for damages against her employer, United Security Bank (USB), and its Vice President of Human Resources, Ellie Rosenberg (together, Defendants). Plaintiff worked as a teller at the bank's convention center branch in downtown Fresno, California, until USB closed the branch due to COVID-19. Plaintiff alleges 10 causes of action against Defendants, including 7 claims based on violations of Government Code section 12940, which is part of the Fair Employment and Housing Act (FEHA). Plaintiff also alleges causes of action for violation of Business and Professions Code section 17200 et seq. and intentional and negligent infliction of emotional distress. Defendants filed a motion for summary judgment, or in the alternative, summary adjudication, which Plaintiff opposes.

Law Governing Summary Judgment and Summary Adjudication

A motion for summary judgment is generally directed toward an entire action or pleading. (Code Civ. Proc., §437c, subd. (a).) By comparison "[a] party may move for summary adjudication as to one or more causes of action within an action" (Code Civ. Proc., § 437c, subd. (f)(1).) In general, "[a] motion for summary adjudication shall be granted only if it completely disposes of a cause of action" (Code Civ. Proc., § 437c, subd. (f)(1).) "A motion for summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

Code of Civil Procedure section 437c, subdivision (c) provides that summary judgment "shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law." A defendant moving for summary judgment has the initial burden of presenting

evidence that a cause of action lacks merit because the plaintiff cannot establish an element of the cause of action or there is a complete defense. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 853 (*Aguilar*).) If the defendant satisfies this initial burden, the burden shifts to the plaintiff to present evidence demonstrating there is a triable issue of material fact. (Code Civ. Proc., § 437c, subd. (p)(2); *Aguilar*, at p. 850.)

The trial court must "carefully scrutinize the moving party's papers and resolve all doubts regarding the existence of material, triable issues of fact in favor of the party opposing the motion." (*Connelly v. County of Fresno* (2006) 146 Cal.App.4th 29, 36.) The court must strictly construe the moving party's declarations and liberally construe the opposing party's declarations. (*Villacres v. ABM Industries Inc.* (2010) 189 Cal.App.4th 562, 575 [affirming trial court's granting of employer's summary judgment motion]; *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 839 [reversing summary judgment where evidence suggested strong possibility trier of fact would resolve issues in favor of moving defendant, but not necessarily so].) "A triable issue of fact is created when the evidence reasonably permits the trier of fact, under the applicable standard of proof, to find the purportedly contested fact in favor of the party opposing the motion." (*Loomis v. Amazon.com LLC* (2021) 63 Cal.App.5th 466, 475 [reversing summary judgment where genuine issues of material fact existed on consumer's strict products liability claim].)

In *Arteaga v. Brink's, Inc.* (2008) 163 Cal.App.4th 327 (*Arteaga*) the court clarified that a defendant's burden in an employment discrimination case depends on whether the issues arise in during trial or upon a motion for summary judgment:

[A]lthough the burden of proof in a discrimination action claiming an unjustifiable [action] ultimately rests with the plaintiff, in the case of a motion for summary judgment or summary issue adjudication, the burden rests with the moving party to negate the plaintiff's right to prevail on a particular issue. In other words, the burden is reversed in the case of a summary issue adjudication or summary judgment motion. [Citation.]

(*Id.* at p. 344, internal quotation marks and ellipses omitted.)

The Issues Framed by the Pleadings

The pleadings set the boundaries of the issues to be resolved. Defendants summarize the allegations in Plaintiff's complaint, filed on May 23, 2022, which describe four instances of alleged discrimination, and Defendants' grounds for summary judgment as follows:

First, Plaintiff claims Defendants violated FEHA when Defendants requested that she adjust her pregnancy leave return date in 2013, yet any claim based on this event would be time barred and unavailable to Plaintiff because it was excluded from her complaint with the Civil Rights Department, formerly the Department of Fair Employment and Housing ("DFEH"). Moreover, there is no dispute that Plaintiff declined Defendants' request and that Plaintiff took leave as requested. Second, Plaintiff claims Defendants violated the law when she was reprimanded in 2017. However,

any claim based on this meeting would also be time barred, or unavailable to Plaintiff because it was excluded from Plaintiff's DFEH complaint. Furthermore, there is no dispute that Plaintiff was reprimanded for attendance issues, which constitutes a valid and nondiscriminatory reason to reprimand an employee, and there was no change in Plaintiff's conditions of employment. Third, Plaintiff claims Defendants failed to accommodate her restrictions during her pregnancy in 2019. This failure to accommodate is also time barred and excluded from Plaintiff's DFEH complaint. Additionally, Defendants accommodated Plaintiff. Lastly, Plaintiff claims Defendants wrongfully terminated her employment based on her pregnancies. However, Plaintiff's employment was terminated when USB had to close its downtown Fresno branch due to COVID-19.

(Memo., p. 1:8-22.)

In her opposition, Plaintiff clarifies that she does not base her discrimination claims on the events that occurred in 2012, 2013, and 2017, which would be barred by the applicable administrative limitations period. "Rather, those events are relevant evidence of Defendants' treatment of Plaintiff because of her pregnancy and status as a working mother and are probative of the discriminatory motive underlying Defendants' later conduct." (Opp., p. 5:13-16.)

Defendants Satisfy Their Initial Burden

Defendants move for summary judgment or alternatively for summary adjudication of each of Plaintiff's seven causes of action under FEHA, her eighth cause of action for violation of Business and Professions Code section 17200, and her ninth and tenth causes of action for intentional and negligent infliction of emotional distress. Defendants generally contend Plaintiff cannot prove the necessary adverse employment actions.

First Cause of Action for Pregnancy Discrimination

The FEHA prohibits an employer from terminating or discriminating against an employee as to the employee's compensation, or the employee's terms, conditions, or privileges of employment, on account of the employee's sex. The term "sex" includes pregnancy and medical conditions related to pregnancy and childbirth. (Gov. Code, § 12926, subd. (r)(1).) In her DFEH complaint, which Plaintiff filed on May 19, 2022, Plaintiff "only references events that occurred on or about April 30, 2021." (Fact no. 9.)¹

Plaintiff argues, correctly, that evidence of earlier conduct may be relevant to determine whether a later employment action was motivated by discrimination. (Opp., p. 5:17-22, citing *Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1056 (*Yanowitz*) [under continuing violation doctrine, "an employer is liable for actions that take place outside the limitations period if these actions are sufficiently linked to unlawful conduct that occurred within the limitations period"].) Based on Plaintiff's admission that her

¹ The court grants Defendants' request for judicial notice of the complaint in this action, which includes the DFEH complaint as exhibit A.

complaint is limited to the events occurring in April 2021, the court will consider the April 2021 events as the basis of her claim. The court will also consider Plaintiff's evidence of prior events to determine if Plaintiff can establish the requisite link to alleged unlawful conduct that occurred within the limitations period.

Defendants cite *Hodges v. Cedars-Sinai Medical Center* (2023) 91 Cal.App.5th 894 (*Hodges*), where the court summarized the applicable summary judgment rules for a FEHA discrimination case as follows:

Summary judgment on a FEHA discrimination claim is appropriate where, regardless of any dispute concerning the plaintiff's prima facie case, the employer presents evidence of a legitimate, nondiscriminatory motive for its action, and the plaintiff fails to provide evidence rebutting the stated reason as pretextual. (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 357 (*Guz*).) Reasons are "legitimate" if they are "facially unrelated to prohibited bias, and which, if true, would thus preclude a finding of discrimination." (*Id.* at p. 358, italics omitted [by *Hodges* court].) Issues that are " 'nondiscriminatory on their face' and 'honestly believed' by [the] employer, will suffice even if 'foolish or trivial or baseless' "; the "ultimate issue is whether [the] employer 'honestly believed in the reasons it offers.' " (*Ibid.*)

(*Hodges*, at p. 910.)

Defendants also rely on *Wilkin v. Community Hospital of Monterey Peninsula* (2021) 71 Cal.App.5th 806 (*Wilkin*), where the employee appealed after the trial court granted summary judgment for the employer. The appellate court affirmed and summarized the burden-shifting standard applicable to discrimination claims brought under FEHA as follows:

In *Kelly [v. Stamps.com Inc.]* (2005) 135 Cal.App.4th 1088, the court explained the *Guz* standard in light of the California Supreme Court's decision in *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826: 'A defendant employer's motion for summary judgment slightly modifies the order of these [*McDonnell Douglas*] showings. If, as here, the motion for summary judgment relies in whole or in part on a showing of nondiscriminatory reasons for the discharge, the employer satisfies its burden as moving party if it presents evidence of such nondiscriminatory reasons that would permit a trier of fact to find, more likely than not, that they were the basis for the termination. [Citations.] To defeat the motion, the employee then must adduce or point to evidence raising a triable issue, that would permit a trier of fact to find by a preponderance that intentional discrimination occurred. [Citations.] In determining whether these burdens were met, we must view the evidence in the light most favorable to plaintiff, as the nonmoving party, liberally construing her evidence while strictly scrutinizing defendant's.

(*Wilkins*, at pp. 821–822, internal quotation marks omitted [finding employer presented nondiscriminatory reason for terminating employee based on history of absences].)

In *Martin v. Lockheed Missiles & Space Co.* (1994) 29 Cal.App.4th 1718, the 65-year-old plaintiff alleged sex and age discrimination under the FEHA after she was laid off. On a motion for summary judgment, the defendant sufficiently showed the plaintiff had been subject to a nondiscriminatory reduction in the work force and her inability to find a replacement assignment was not based on any wrongful conduct by the defendant.

Here, Defendants present evidence that Plaintiff went on pregnancy leave from February 2019 through March 12, 2019, and again from August 12, 2019, to January 13, 2020. (Fact no. 11.) During her pregnancy, Plaintiff had restrictions on lifting. (Fact no. 12.) Neither USB nor Ellie Rosenberg required Plaintiff to lift over 10 pounds. (Fact no. 13.) In March 2020 USB had to close its convention center branch due to staffing issues related to COVID-19. (Fact no. 14.) As of March 2020, three employees staffed USB's convention center branch: Ketra Washington, Andrea Serna, and Plaintiff. (Fact no. 15.) Both Ketra Washington and Plaintiff were furloughed around March 2020. (Fact no. 16.) Around March 2020, Plaintiff told her supervisor, Andrea Serna, that she could not come to work because she had to stay home with her children since schools were closed. (Fact no. 17.) After the closure of its convention center branch, USB transferred Andrea Serna to an open supervisor position at USB's branch in San Joaquin, California. (Fact Nos. 18, 19.) USB placed Plaintiff on furlough effective March 16, 2020. (Fact no. 20.) "During the furlough, Plaintiff did not apply nor want to work at another USB branch." (Fact no. 21.) Over a year later, on April 28, 2021, Plaintiff emailed Ellie Rosenberg for an update on whether Plaintiff would be returning to her branch, relocated, or permanently laid off. (Fact no. 22.) Ellie Rosenberg replied the same day as follows:

At this point, I do not have any information on reopening the convention center branch anytime soon since it has been over one year I would say you are permanently laid off because I cannot guarantee that we will reopen. I wish I could provide you with a better answer than that and cannot predict what the future will be so I would actively look for other employment within the bank or outside the bank.

(Fact no. 23; Sanchez decl., ex. B [USB00023].)

Defendants meet their burden to show USB closed its convention center branch in March 2020 due to COVID-19. Thus Defendants present a legitimate, nondiscriminatory motive for their actions in placing not only Plaintiff, but also Ketra Washington on furlough. Around the time Plaintiff and her co-teller were placed on furlough, Plaintiff's supervisor, Andrea Serna, was transferred to an open supervisor position at USB's branch in San Joaquin, California. Defendants also present evidence of a second independent nondiscriminatory reason to furlough Plaintiff, based on her meeting in 2017 with her supervisor, Andrea Serna, and Ellie Rosenberg to discuss Plaintiff's unexcused absences. (Fact no. 6 [Plaintiff's depo., pp. 36, 49, 50].) Thus, Defendants meet their initial burden on the first cause of action for pregnancy discrimination to present nondiscriminatory reasons that would permit a trier of fact to find, more likely than not, that Defendants placed Plaintiff on furlough and ultimately terminated her employment for nondiscriminatory reasons.

Second and Third Causes of Action for Failure to Accommodate Disability and Failure to Engage in the Interactive Process

"The essential elements of a failure to accommodate claim are: (1) the plaintiff has a disability covered by the FEHA; (2) the plaintiff is a qualified individual (i.e., he or she can perform the essential functions of the position); and (3) the employer failed to reasonably accommodate the plaintiff's disability." (*Wilson v. County of Orange* (2009) 169 Cal.App.4th 1185, 1192.) "The 'interactive process' required by the FEHA is an informal process with the employee or the employee's representative, to attempt to identify a reasonable accommodation that will enable the employee to perform the job effectively." (*Id.* at p. 1195.)

Plaintiff contends USB and Ellie Rosenberg failed to accommodate her lifting restrictions during her pregnancy in 2019. As noted above, the court finds the DFEH complaint is limited to matters occurring on or about April 30, 2021, therefore, the alleged events occurring before that date are time barred. In addition, Defendants present evidence to show they never required Plaintiff to exceed her restrictions. (Fact no. 13 [Andrea Serna depo, pp. 96-97 (when Plaintiff informed Serna that she could not pick up boxes due to doctor's restrictions, Serna picked up boxes herself)].) The court finds Defendants meet their initial burden on the second and third causes of action to show the claims are time barred and, in any event, Defendants accommodated Plaintiff's requests in connection with her pregnancy.

Fourth Cause of Action for Harassment

Again, Plaintiff's claims for harassment occurring before April 2021 are time barred. Furthermore, Plaintiff has no evidence that she was required to lift over her restrictions or that her employment was terminated because of her pregnancies. Therefore, Defendants meet their burden to show Plaintiff cannot prove harassment.

Fifth Cause of Action for Failure to Prevent Discrimination and Harassment

Under Government Code section 12940, subdivision (k), an employer must take all reasonable steps necessary to prevent discrimination and harassment from occurring. But an actionable claim under this subdivision is "dependent on a claim of actual discrimination." (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1021 [affirming trial court's granting of summary judgment to employer].) Based on the court's previous determinations that Plaintiff's discrimination and harassment claims fail, the court finds Plaintiff's dependent claims must also fail.

Sixth Cause of Action for Wrongful Termination in Violation of Public Policy

"[W]hen an employer's discharge of an employee violates fundamental principles of public policy, the discharged employee may maintain a tort action and recover damages traditionally available in such actions." (*Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167, 170.) When an employer presents evidence of a legitimate reason for an adverse employment action, a plaintiff cannot recover damages for wrongful

termination, even if the trier of fact finds that discrimination was a substantial motivating reason for the adverse action. (*Davis v. Farmers Ins. Exchange* (2016) 245 Cal.App.4th 1302, 1321.) Here, Defendants present evidence of a legitimate reason to terminate Plaintiff's employment based on the closure of the convention center branch. Therefore, Defendants meet their burden to show Plaintiff cannot prevail on her sixth cause of action.

Seventh Cause of Action for Retaliation for Engaging in Protected Activity

Requesting an accommodation is a type of "protected activity" under the FEHA. (Gov. Code, § 12940, subd. (m)(2).) In *Yanowitz*, the court explained the requirements to establish a claim for retaliation as follows:

[I]n order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a "protected activity," (2) the employer subjected the employee to an adverse employment action, and (3) a causal link existed between the protected activity and the employer's action. [Citations.] Once an employee establishes a prima facie case, the employer is required to offer a legitimate, nonretaliatory reason for the adverse employment action. [Citation.] If the employer produces a legitimate reason for the adverse employment action, the presumption of retaliation "drops out of the picture," and the burden shifts back to the employee to prove intentional retaliation. [Citation.]

(*Yanowitz, supra*, 36 Cal.4th at p. 1042.) Here, Defendants meet their burden to offer a nonretaliatory reason for the adverse employment action—the closure of the convention center branch.

Eighth Cause of Action for Violation of Business and Professions Code Section 17200

In *Safeway, Inc. v. Superior Court* (2015) 238 Cal.App.4th 1138, the court explained the principles applicable to a claim under Business and Profession Code section 17200 (the Unfair Competition Law [UCL]):

Generally, the UCL defines "unfair competition" broadly to include "any unlawful, unfair or fraudulent business act or practice." (Bus. & Prof. Code, § 17200.) "By proscribing 'any unlawful' business practice, '[the UCL] 'borrows' violations of other laws and treats them as unlawful practices' that the unfair competition law makes independently actionable. [¶] However, the law does more than just borrow. The statutory language referring to "any unlawful, unfair or fraudulent" practice (*italics added* [by *Safeway* court]) makes clear that a practice may be deemed unfair even if not specifically proscribed by some other law." [Citation.]

(*Safeway, Inc. v. Superior Court, supra*, 238 Cal.App.4th at p. 1147.)

"[W]hen the underlying legal claim fails, so too will a derivative UCL claim." (*AMN Healthcare, Inc. v. Aya Healthcare Services, Inc.* (2018) 28 Cal.App.5th 923, 950.) Here, the underlying FEHA claims fail, therefore, Plaintiff's UCL claim also fails.

Ninth and Tenth Causes of Action for Intentional and Negligent Infliction of Emotional Distress

To state a cause of action for intentional infliction of emotional distress a plaintiff must allege the following elements:

(1) [E]xtreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff's suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. [Citations.] A defendant's conduct is "outrageous" when it is so extreme as to exceed all bounds of that usually tolerated in a civilized community. [Citation.] And the defendant's conduct must be intended to inflict injury or engaged in with the realization that injury will result. [Citation.]

(*Hughes v. Pair* (2009) 46 Cal.4th 1035, 1050–1051, internal quotation marks omitted.)

Plaintiff's claims are time barred by the two-year statute of limitations set forth in Code of Civil Procedure section 335.1. In addition, Plaintiff fails to allege the extreme or outrageous conduct required for an intentional cause of action.

"Negligent infliction of emotional distress is not an independent tort; it is the tort of negligence to which the traditional elements of duty, breach of duty, causation, and damages apply." (*Ess v. Eskaton Properties, Inc.* (2002) 97 Cal.App.4th 120, 126.) Although a lower standard applies to negligence, Plaintiff's claim is still based on the alleged harassment, discrimination, and retaliation that Defendants have negated.

In summary, Defendants meet their burden on summary judgment to show, as a matter of law, that Plaintiff cannot establish a necessary element of each cause of action. Therefore, the burden shifts to Plaintiff to raise a triable issue of material fact by providing evidence to rebut Defendants' stated reasons as pretextual.

Plaintiff Fails to Raise a Triable Issue of Material Fact

A party opposing summary judgment must present admissible evidence, including "declarations, admissions, answers to interrogatories, depositions, and matters of which judicial notice" must or may "be taken." (*Aguilar, supra*, 25 Cal.4th at p. 843, quoting Code Civ. Proc., § 437c, subd. (b).) Code of Civil Procedure section 437c, subdivision (p)(2) sets forth a plaintiff's burden after a defendant meets the initial burden to prove at least one element of a cause of action cannot be established:

Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. The plaintiff . . . shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto.

Plaintiff purports to dispute several facts in her separate statement, but she fails to raise a triable issue that would permit a trier of fact to find by a preponderance that intentional discrimination occurred. For example, Plaintiff purports to dispute fact number five, which simply provides: "USB asked Plaintiff if she could adjust her start date, but Plaintiff declined and she took leave as requested." The evidence Plaintiff submits to "clarify" this fact fails to raise a material dispute.

Likewise, with respect to facts about the 2017 meeting to discuss Plaintiff's unexcused absences, Plaintiff attempts to dispute fact numbers six and seven with clarifications that she was required to miss work to care for her sick child and adding a detail that her "absences were alleged in a verbal warning." Plaintiff purports to dispute fact number eight because Defendants failed to include a detail that Ellie Rosenberg criticized Plaintiff for being "unreliable" at the meeting. The additional details and clarifications fail to raise a material dispute that a meeting occurred in 2017 to discuss Plaintiff's documented unexcused absences.

For fact numbers 12 and 13, Plaintiff continues with her pattern of adding details that fail to dispute the stated fact. For fact number 12, Plaintiff explains why she had lifting restrictions. For fact number 13 Plaintiff explains her job duties but fails to provide any evidence to show she was required to lift over 10 pounds.

Plaintiff purports to dispute fact number 14, that USB had to close its convention center branch due to COVID-19 with the statement "Plaintiff testified that the USB branch was not required to close." Plaintiff's cited deposition testimony includes her admission that she was not a reliable employee, but she fails to mention the branch closure:

Q. (BY MR. SANCHEZ) So Mrs. Chavez, we were last talking about that 2017 discussion you had with Ellie and Andrea, and you indicated that you recall Ellie saying that you were not a reliable employee; is that correct?

A. [By Plaintiff] Yes.

Q. And is it correct that you were not reliable because of your attendance? Is that correct?

MR. LOUIS: Objection; misstates prior testimony.

THE WITNESS: Yes.

(Setareh decl., ex. A, Chavez depo., p. 49:3-13 [Plaintiff's cited testimony in separate statement is "Chavez Dep. 49:4-12."].)

Plaintiff continues with her pattern of adding additional details that fail to raise a dispute: for fact number 15 [adding a detail that one additional employee in the risk department worked at the convention center branch]; for fact number 16 (argument about the effect of the decision to furlough teller Ketra Washington around the same time as Plaintiff); for fact number 17 (adding a detail that Plaintiff was required to stay home due to the State-mandated COVID-19 school closures); fact numbers 18 and 19 (argument about characterization of Ellie Rosenberg's testimony and effect of placing supervisor Andrea Serna in an "open" position at another branch); fact number 21 (admitting Plaintiff's preference was to work at convention center branch and failing to provide evidence that Plaintiff applied to work at another branch); fact number 22 (adding details about an email Plaintiff admittedly sent, which is included in the record); and fact number 23 (providing quotation of email text Defendants accurately summarized).

Plaintiff also provides a statement of additional material facts (SAMF), which fail to raise a material dispute. For example, SAMF number 2 provides an additional detail that Plaintiff receive positive performance evaluations and performed her duties in accordance with USB's requirements. SAMF numbers 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, and 14 relate to events occurring before April 30, 2021. None of the facts are sufficient to overcome Plaintiff's admission that the 2017 meeting occurred.

SAMF numbers 15, 16, and 17 provide details about Plaintiff's pregnancy leave, which Defendants granted. But for SAMF number 17, Plaintiff fails to submit a doctor's note with lifting restrictions (Plaintiff's evidence is a note dated January 17, 2013). For SAMF number 18, Plaintiff provides no evidence about "heavy" boxes or the weight of the boxes USB "required" her to lift, nor does she provide a date when USB required her to lift a box. The additional details fail to dispute Defendants' undisputed fact numbers 12 and 13 that Defendants did not require Plaintiff to lift over 10 pounds during her pregnancy.

SAMF numbers 19, 20, 21, and 22, also relate to Plaintiff's lifting restrictions during her first pregnancy. The evidence Plaintiff submits to "provide the requested medical document" includes no lifting restrictions. (SAMF no. 22; Setareh decl., ex. C [2013 note].) SAMF number 23 simply confirms Plaintiff's request for a second maternity leave. Once again, the doctor's note she provides includes no lifting restrictions. (Setareh decl., ex. I [2019 note].)

SAMF number 24 simply states: "shortly after Plaintiff returned from maternity leave, USB furloughed Plaintiff and closed her branch." This fact confirms that USB closed the convention center branch and fails to provide evidence to rebut Defendants' stated reason to furlough Plaintiff as pretextual. SAMF numbers 25 through 36 provide additional details about Plaintiff's communications after the furlough.

To defeat the motion, Plaintiff must adduce or point to evidence raising a triable issue, that would permit a trier of fact to find by a preponderance of the evidence that intentional discrimination occurred. Plaintiff fails to apply the law to the facts of this case to meet her burden to raise a triable issue of material fact.

Conclusion

The court finds Defendants meet their initial burden to submit evidence to establish nondiscriminatory reasons for placing Plaintiff on furlough and to establish that Plaintiff cannot prove at least one essential element of each cause of action. The burden then shifts to Plaintiff to raise a triable issue of material fact, which she fails to do. Therefore, the court grants Defendants' motion for summary judgment.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS on 9/8/2026.
(Judge's initials)